



CHAPTER cxxvi.

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1899 relating to Merrow Downs in the Parish of Merrow in the County of Surrey. A.D. 1904.

[22nd July 1904.]

WHEREAS the Board of Agriculture and Fisheries did in pursuance of the Inclosure Acts 1845 to 1899 issue in the year nineteen hundred and three the Provisional Order of Regulation set forth in the schedule hereto and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict.
c. 118, &c.

And whereas a Committee of the House of Commons to which the same Provisional Order was referred recommended that the same should be confirmed without modification:

And whereas the said regulation cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order of Regulation set forth in the schedule to this Act is hereby confirmed. Order in
schedule
confirmed.

2. This Act may be cited as the Commons Regulation (*Merrow*) Provisional Order Act 1904. Short title.

A.D. 1904.

SCHEDULE.

PROVISIONAL ORDER FOR THE REGULATION OF MERROW DOWNS.

WHEREAS persons interested in certain lands called or known as Merrow Downs (hereinafter referred to as "the said Common") situate in the parish of Merrow in the county of Surrey—such lands being a Common within the meaning of the Inclosure Acts 1845 to 1899—made application to the Board of Agriculture to issue a Provisional Order for the regulation of the said Common and to certify that it is expedient that such Provisional Order should be confirmed by Parliament :

And whereas it was made to appear to the said Board that the persons making the said application represent at least one-third in value of such interests in the said Common as are proposed to be affected by the Provisional Order :

And whereas the said Board having taken the said application into consideration were satisfied that a *prima facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board :

And whereas the said officer having caused public notice to be given as required by the said Acts held pursuant to such notice public meetings in accordance with the requirements of the said Acts to hear all persons desirous of being heard on the subject matter of the said application and any information or evidence which might be offered in relation thereto and inquired into the correctness of the statements in the said application and otherwise into the expediency of making the Provisional Order applied for and into the nature of the provisions to be inserted in such Provisional Order :

And whereas the said officer inspected the said Common as required by the said Acts :

And whereas the said officer duly reported in writing to the said Board the result of the local inquiry and of the public meetings held by him together with all the information and other matters required by the said Acts :

And whereas the provisions of the said Acts have been in all respects complied with :

And whereas the Board of Agriculture and Fisheries have prepared and sealed a map showing the reputed boundaries of the said Common which is thereon coloured green and dark green and yellow :

And whereas the said Common is waste land of the manor of Merrow otherwise Temple Court and the Right Honourable William Hillier Earl of Onslow the lord of the said manor claims to be entitled as such lord to the soil of the said Common and to the mines and minerals thereunder subject to the rights of the Guildford Golf Club under two indentures dated the 21st February 1887 and the 22nd June 1901 respectively :

And whereas the Corporation of the borough of Guildford to which A.D. 1904.
borough the said Common is suburban within the meaning of the said
Acts have with the sanction of the said Board entered into an undertaking
to contribute a sum of fifty pounds per annum for the maintenance and
management of the said Common :

Now therefore the Board of Agriculture and Fisheries being satisfied
that regard being had to the benefit of the neighbourhood as well as to
private interests it is expedient to proceed further in the matter do by
virtue of the powers in this behalf given to them by the Inclosure Acts 1845
to 1899 and the Board of Agriculture and Fisheries Acts 1889 and 1903 make
this their Provisional Order as follows (that is to say) :—

PART I.—For the adjustment of rights in respect of the said Common Adjustment
of rights.
the following provisions shall be put in force :—

- (a) As respects rights of common of pasture the determination of the
persons by whom the stock by which and the times at which such
common of pasture is to be exercised ;
- (b) As respects rights of common of estovers and other rights of common
which may be found to exist the determination of the persons by
whom and the mode and place or places in which and the times at
which such rights are to be exercised.

PART II.—For the improvement of the said Common the following Improve-
ment.
provisions shall be put in force :—

There shall be nine conservators of the said Common to be appointed Conservators.
as follows (that is to say) two by the lord of the manor of Merrow two by
the mayor aldermen and burgesses of the borough of Guildford acting by the
council one by the Merrow Parish Council and four by the persons entitled
to rights of common and such conservators shall have power to—

- (a) Drain manure and level the said Common (except the portion which
is coloured yellow on the said map) ; and
- (b) Plant trees on the said Common (except as aforesaid) or in any
other way improve or add to the beauty of the said Common
(except as aforesaid) ; and
- (c) Make byelaws and regulations for the prevention of or protection
from nuisances or for keeping order on the said Common or for
preventing malicious or wanton injury to property therein or
thereon or for the regulation of the exercise of lawful rights
of common subsisting thereon such byelaws and regulations being
subject to any such confirmation as is by law required ; and
- (d) Generally manage the said Common.

PART III.—For the benefit of the neighbourhood :—

- (a) There shall be reserved (1) a right of free access at all times to the
portions of the said Common coloured green and dark green Provisions for
the benefit of
the neigh-
bourhood.
on the said map and a privilege of walking riding and enjoying
air and exercise thereon and (2) a privilege of playing games

A.D. 1904.

on such parts of the portion of the said Common coloured dark green on the said map as may be appointed by the conservators for the purpose but any right or privilege hereby conferred shall be subject to the rights of the Guildford Golf Club under the above-mentioned indentures and also subject to such reasonable rules and regulations for the enjoyment thereof as may from time to time be prescribed by any byelaws and regulations to be made by the conservators and confirmed as by law required and the conservators may cause any part or parts for the time being appointed for the playing of games as aforesaid to be temporarily inclosed with posts and chains or other open fences;

- (b) There shall be set out as an allotment for the purpose of supplying fuel and litter for the labouring poor of the parish of Marrow (other than persons entitled to rights of common of estovers over the said Common) exclusively the portion of the said Common hatched dark green on the said map which shall be marked out by boundary stones. The conservators shall in each year appropriate such part or parts of the said allotment as they think fit for use in that year and the labouring poor of Marrow shall have the exclusive right to cut and take long grass and ferns from the part or parts so for the time being appropriated for their own use as fuel or litter but not for sale and subject to such byelaws for regulating the exercise of such right as may be made by the conservators who shall have power to make byelaws for that purpose but this provision shall not affect any rights of common exerciseable in or over the said allotment except the right of common of estovers;
- (c) The yew trees on the said Common shall so far as possible be preserved by the conservators;
- (d) The conservators shall have power to set out make and maintain new carriage roads bridle paths and footpaths over the said Common except the said portion which is coloured yellow on the said map;
- (e) No flints gravel chalk or other like materials shall be searched for dug got or carried away by any person in out of or from any part of the said Common nor (subject to the proviso hereinafter contained) shall any trees or underwood be cut by any person upon any part of the said Common without the consent of the Conservators. Provided always that this restriction shall not extend to or affect any right of the lord of the manor of Marrow in respect of the cutting of trees or underwood upon the portion of the said Common which is coloured yellow on the said map.

Expenses.

PART IV.—1. There may be raised by such of the conservators for the time being as are interested in the said Common such sums as the Board of

A.D. 1904.
—

Agriculture shall think fit and by order from time to time under their seal at the request of such conservators direct to be applied towards the improvement or protection of the said Common by means of the sale of any part or parts not exceeding in all one acre and a half of the portion of the said Common hatched red on the said map.

2. The provisions of the Inclosure Acts 1845 to 1899 relating to a sale by a valuer for expenses of an inclosure shall apply mutatis mutandis to a sale by conservators under the last preceding provision.

3. The expenses of and incidental to the regulation may be raised in manner provided by the said Inclosure Acts by a sale of a part or parts not exceeding in all one acre and a half of the portion of the said Common hatched red on the said map. Provided that no more shall be sold than may be found necessary but no purchaser shall be bound to ascertain that no more is sold than is necessary.

4. Any land hereby authorised to be sold shall until sale remain open and form part of the regulated Common and be subject to the provisions of this Order.

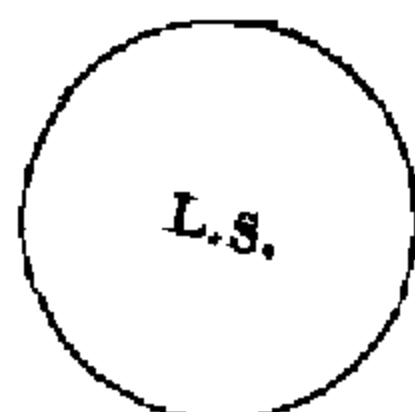
PART V.—This Provisional Order is (except as herein expressly provided) to be without prejudice to any rights of the lord of the manor or the Guildford Golf Club or other persons deriving title under the said lord in or over the soil of the said Common and in the mines and minerals thereunder and the trees and underwood thereon and without prejudice to any rights of the commoners or other persons in or over the said Common or any part thereof and all such rights may except as herein expressly provided be exercised in the same manner and to the same extent as if this Provisional Order had not been made.

Reservation
of rights of
lord of the
manor and
commoners.

PART VI.—For the purpose of giving complete effect to this Provisional Order there shall be inserted in the award to be made in pursuance of the Inclosure Acts 1845 to 1899 such provisions not inconsistent with those Acts as the Board of Agriculture and Fisheries shall think desirable and proper.

Award.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this Twenty-first day of December One thousand nine hundred and three.



(Sd.) T. H. ELLIOTT
Secretary.

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